

Legal, Compliance & Shipping Suite

color coolSteel

Attribute	Detail
Boutique Location	Shop U28A, Upper Level, Trade Route Mall, Lenasia, Gauteng, South Africa
System Integrator	MrKolapie Pty Ltd™ & MrKolapie Studioz
Regulatory Jurisdiction	Republic of South Africa (RSA)
POPIA Status	Compliant (Information Officer: zariethnics@gmail.com)
Last Reviewed	June 2026

□ Regulatory Compliance Decree

This legal instrument establishes the binding terms of service, processing systems, and consumer protections governing **Zari Ethnics**. All operations, digital transaction requests, and inventory handovers are executed in strict alignment with South African statutory laws:

- **The Protection of Personal Information Act (POPIA), Act No. 4 of 2013**
- **The Consumer Protection Act (CPA), Act No. 68 of 2008**
- **The Electronic Communications and Transactions Act (ECTA), Act No. 25 of 2002**

1. Shopping Cart & Digital Checkout System

1.1 The Static-Dynamic Hybrid Mechanism

The Zari Ethnics website uses a zero-database, serverless shopping bag framework designed to eliminate online registry storage costs while keeping customer transaction data secure.

[Add to Bag] → Stored in localStorage → Encoded to Invoice → Handed off to WhatsApp API

- **Local Processing:** When you add standard retail items, bespoke groom sherwanis, or luxury jewelry to your bag, the selection is compiled locally in your browser's secure localStorage cache.
- **Serverless Environment:** No banking details, passwords, or personal identifying profiles are archived on our web hosting servers, protecting you against data breaches.

1.2 WhatsApp Checkout Integration (ECTA Compliance)

Our shopping checkout operates as a **"Quote & Consult Request"** system rather than a direct automated payment gateway.

1. **Cart Assembly:** Once your bag contains your preferred items, clicking "Submit Cart Inquiry via WhatsApp" translates your browser's stored list into a beautifully structured text invoice.

2. **Transmission:** The system opens a direct, encrypted API protocol link to our secure boutique WhatsApp number (+27 81 274 2028).
3. **Finalizing the Order:** Our on-site showroom coordinators receive this raw order matrix to verify real-time fabric stock, confirm sizing metrics, and provide direct manual payment instructions (EFT or in-showroom card swipe).

1.3 Showroom Fitting Scheduler Integration

For clients seeking physical verification, our cart system features a **"Pre-fill Showroom Fitting Scheduler"** mechanism. This allows you to auto-populate your selected items directly into our appointment scheduler, ensuring our tailors have the exact selected items ready in the showroom for your trial on your booked date.

2. Courier, Shipping & Delivery Policy

Zari Ethnics operates out of its physical flagship showroom at Trade Route Mall, Lenasia. For clients unable to collect physically, we offer premium nationwide courier delivery across South Africa.

2.1 Nationwide Delivery Partners & Rates

- **Courier Partners:** We partner exclusively with premium, tracked logistics providers (such as The Courier Guy, CourierIT, and Aramex) to ensure secure delivery.
- **Fulfillment Centers:** All orders are packed, sealed, and dispatched directly from our Lenasia showroom.
- **Shipping Rates:** Standard nationwide delivery is subject to a flat fee of **R 150.00** for standard garments and jewelry. Oversized bridal lehengas, heavy-embellished sherwanis, or multi-item bridal registries will be calculated based on volumetric weight and quoted during your WhatsApp consultation.

2.2 Timeline for Shipments

Wear Segment	Preparation Period	Courier Delivery Window
Standard Retail Wear	Dispatched within 1–3 business days	2–5 business days (Metro/Outlying)
Custom-Tailored / Bespoke	4–8 weeks production period	2–5 business days (following final inspection)

2.3 Passing of Risk (CPA Section 19 Compliance)

- **In-Transit Liability:** In accordance with South African common law and the CPA, risk of damage or loss passes from Zari Ethnics to the customer once the package is accepted and signed for at the designated delivery address.
- **Delivery Sign-Off:** All shipments are dispatched with a **"Sign-on-Delivery"** restriction. Courier drivers are prohibited from leaving high-value traditional wedding wear on porches or with third-party residential security guards without explicit prior written authorization from the customer.
- **Transit Cover:** Optional high-value transit insurance is highly recommended for bespoke bridal registries and can be added to your final WhatsApp invoice.

3. Mandatory Disclaimers & Artisanal Nature Decree

Because we represent true high-fashion heritage wear, our items differ fundamentally from mass-produced, machine-manufactured fast fashion.

3.1 Artisanal Variations Disclaimer (The Beauty of Handloom)

Every luxury bridal lehenga, zardozi sherwani, and heritage saree available at Zari Ethnics is handcrafted by master artisans in historical Indian weaving hubs (including Varanasi, Jaipur,

Lucknow, and Kolkata):

- **Natural Anomalies:** Slight organic variations in the weave pattern, minor overlaps of silk threads, tiny inconsistencies in bead/stone placement, or subtle dye-lot variations are not manufacturing defects.
- **Heritage Guarantee:** These organic characteristics are authentic proof of traditional handloom and hand-embroidery handcrafting.

3.2 High-Fidelity Conceptual Renderings Disclaimer

To provide an immersive online digital experience, our catalogs feature advanced high-definition conceptual modeling:

- **Color Discrepancy:** Fabric colors, zari thread shimmer, and velvet sheen may appear slightly different depending on your mobile screen or computer monitor's color temperature settings.
- **Drape and Fit:** Final fabric drape, raw weight, and fabric movement will vary naturally based on individual custom physical measurements compared to digital mockups.

3.3 Remote Sizing Disclaimer

If a customer chooses to submit their measurements remotely via our WhatsApp console (without visiting our Trade Route Mall showroom for a professional master tailor fitting session):

- **Fit Risk:** The customer accepts 100% responsibility for the accuracy of the measurements submitted.
- **Alterations:** Any subsequent adjustments or alterations required for remotely sized garments will be subject to standard tailor alteration fees.

4. Consumer Protection Act (CPA) Compliant Return Policy

Our return policy complies fully with **Section 20 of the South African Consumer Protection Act**, which outlines strict differentiations between standard retail stock and custom-made goods.

Is the item a standard retail product?	
[YES] ✓	✗ [NO (Bespoke/Custom-sized)]
Eligible for Exchange/Store Credit	Exempt from Returns (CPA Sec 20(3)(a))

4.1 Standard Retail Goods (CPA Section 20)

For standard, unaltered stock items (such as standard-sized kurtas, accessories, or jewelry) purchased at our standard retail price:

- You are entitled to exchange the item or request a boutique credit within **7 business days** of purchase or courier receipt.
- **Prerequisites:** The garment must be completely unworn, unwashed, unaltered, and remain in its original pristine packaging with all original boutique security tags intact. The original showroom receipt must be presented.

4.2 Custom-Made / Bespoke Attire Exclusion (CPA Section 20(3)(a))

- **The Law:** Under Section 20(3)(a) of the CPA, the standard consumer right of return **does not apply** to transactions where goods have been custom-made, altered, personalized, or tailored to a customer's specific measurements.
- **Application:** Once raw fabric cutting, hand-weaving, or custom zardozi embroidery has commenced on a custom bridal lehenga or groom's sherwani, the order is **strictly non-refundable and non-exchangeable**.
- **Final Sign-Off:** Customers who opt for in-showroom collection must physically fit and sign off on their garment before taking delivery. Zari Ethnics accepts no liability for fit issues arising from subsequent personal weight fluctuations once the garment leaves our doors.

4.3 Deposit and Cancellation Policy

Deposits paid for custom bridal or groom commissions secure the raw materials and block artisan slots in South Asia.

- **Cancellations within 48 Hours:** 100% refundable.
- **Cancellations after 48 Hours:** 50% cancellation fee applies to cover raw silk, dye preparation, and initial designer booking costs.
- **Cancellations after Weaving Begins:** 100% forfeiture of deposit.

5. Protection of Personal Information Act (POPIA) Privacy Shield

Zari Ethnics respects your constitutional right to privacy and acts as the "Responsible Party" under POPIA for all customer data.

5.1 Personal Information Collected & Operational Scope

We collect only the minimum necessary data to process your bridal registry, fitting appointments, or shipping deliveries:

- **First & Last Name:** Identity verification and fitting card registration.
- **WhatsApp Number & Mobile Contact:** Real-time order coordination and consultation.
- **Physical Shipping Address:** Handover to tracked nationwide courier partners.
- **Physical Body Measurements:** Custom master-tailor fabric mapping.

5.2 Direct Marketing Restriction

We will **never** sell, trade, or distribute your telephone numbers or order history to third-party marketing brokers. Your data is used solely to coordinate your active order, process your fitting schedule, or dispatch your package.

5.3 Data Deletion Rights

Under POPIA, you retain the right to request access to the personal records we keep, request corrections, or ask for the permanent deletion of your measurements from our registers. For compliance queries, email our Information Officer at zariethnics@gmail.com.

▣ Developer Technical Integration Seal

This document and its companion web platform are engineered and maintained under commercial agency support by:

MrKolapie Pty Ltd™ (South Africa)

Advanced Cloud Architectures & Custom E-Commerce Solutions

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